
2:00 PM LINE 8

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X. YOUNG LAI
JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE, NO. 1-9)

TENTATIVE RULING:

Plaintiff Chunyu Tan's Motion for Terminating, Issue, Evidence, and Monetary Sanctions Regarding Plaintiff's Requests for Production of Documents (Set One, Nos. 1–9) is **GRANTED in part**.

A. Service of the Motion and Defendant's Response

Because the court had questions about whether this Motion was properly served, counsel were ordered to appear on August 5, 2026 and the court permitted defendant's counsel to file a responsive brief. He submitted an omnibus opposition to the four motions to compel as well as a declaration on August 20, 2026. No discovery responses were submitted along with defendant's opposition. Instead, defendant's counsel has asked for additional time to respond. He argues that his client's injuries in December 2024 and March 2025 should excuse the failure to respond. Defendant's counsel offers no explanation for any further delay. (See Declaration of Jonathan E. Madison in Opp. to Pltfs.' Requests for Monetary Sanctions Against Counsel of Record, ¶¶ 4-13.) However, defense counsel argues against the court imposing sanctions against counsel of record on the ground that he "did not advise Defendant Yang Min Yang to engage in any of the conduct for which Plaintiff seeks sanctions." (*Id.*, ¶ 20.)

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

On August 7, 2025, having failed to provide any responses whatsoever, Yang was ordered to serve code-compliant responses to Tam’s first set of requests for production by August 19, 2025, and to pay sanctions in the amount of \$425 by September 9, 2025. (Aug. 7, 2025 Order; see Aug. 7, 2025 Affidavit of Service.) At an unspecified time, Yang served responses to the requests, in which he stated his inability to comply with any because he variously is not aware of any responsive documents, has not identified any, or does not possess any. (See March 13, 2026 Separate Statement, Request for Production [Sep. Stmt], *passim*.) On November 18, 2025, Yang served further responses the day before an informal discovery conference which had been scheduled to address defects in the original responses. (March 13, 2025 Declaration of X. Young Lai [Requests for Production]), ¶¶ 3–4, 6–7, 9.)

Neither the original responses nor the further response are code-compliant: each fails to “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party” and “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item” as required by statute. (Code Civ. Proc., § 2031.230; see Sep. Stmt, *passim*.) Nor at any time did Yang pay the monetary sanction. (Lai Decl., ¶ 3.) Therefore, Yang in violation of the August 7, 2025 order.

On this basis, Tan seeks every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c).)

C. Law Governing Sanctions for Discovery Misuse

“It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that “a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.)

D. Discussion

In addition to the delay in prosecution she has suffered, Tan contends she is prejudiced by the fact that no documents have been produced and accuses Yang of "withholding documents to avoid establishing his liability." (March 13, 2026 Motion [Requests for Production], at pp. 7, 1. 19.) That is, Tan argues that the fact that Yang says he has no documents is the problem.

Terminating, issue, and evidentiary sanctions are only appropriate if discovery misuse causes a party to be unable to prove or defend against claims, and the defects here have not done so. Yang's failure to state "whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party" or to "set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item," has prejudiced plaintiff's ability to prosecute this case. (Code Civ. Proc., § 2031.230.) Accordingly, the court **ORDERS** defendant Yang to provide code-compliant responses, without objection, and to produce all responsive non-privileged documents in his possession, custody, and control within thirty (30)

days of notice of entry of the formal order. If any documents are withheld on the ground of attorney-client or other privilege, Yang must produce a privilege log within forty-five (45) days of notice of entry of the formal order. If Yang fails to comply with this order, the court will consider ordering further sanctions.

The court further grants in part the request for monetary sanctions. The court credits plaintiff for five hours of attorney time at \$500/hour (5 x \$500 = \$2,500). (See Lai Decl., ¶ 14(c).) The court is reducing the requested time because the opposition was only filed on August 20, 2026, did not require a response, and the four motions are substantially similar. Defendant's counsel asserts that he did not advise his client to violate his discovery obligations and the court accepts that representation.

Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang is **GRANTED** in the amount of \$2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 9

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

SECOND MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SAN MATEO COUNTY TRANSIT DISTRICT
REGARDING THE PLAINTIFF'S REQUEST FOR PRODUCTION #1

TENTATIVE RULING:

For the reasons stated below, plaintiff Kevin Ramos' "Second Motion to Compel Further Responses from Defendant San Mateo County Transit District Regarding the Plaintiff's Request for Production #1," filed on August 11, 2026, is **DENIED**.

Defendant San Mateo County Transit District's August 20, 2026 Evidentiary Objections are **OVERRULED**. These objections go to weight, not admissibility. In any event, the objections are moot, given that the court is denying the motion.

A. Background

In February 2025, plaintiff served defendant with Requests for Production (RFPs) of Documents (Set One). (Aug. 20, 2026 Lewis Decl., ¶ 2.) On March 26, 2025, defendant served its initial responses to the RFPs, Set One. (*Ibid.*) Discovery was stayed from April through October 2025. (*Id.*, ¶ 3.) On November 21, 2025, defendant served verified supplemental responses to the RFPs, Set One. (*Id.*, ¶ 4.) On December 17, 2025, the court issued an order granting (in part) plaintiff's motion to compel defendant to provide further responses to the RFPs, Set One. (*Id.*, ¶ 5.) Specifically, the court granted plaintiff's motion to compel further responses to RFPs Nos. 1.1, 1.2, 1.4, 1.5, 1.6, 1.7, 1.8, 1.9, and 2.2, but denied the motion as to the remaining RFPs. (*Ibid.*) On February 11, 2026, defendant served (unverified) second supplemental responses to the RFPs, Set One, and on February 25, 2026, defendant served verifications for the second supplemental responses to the RFPs, Set One. (*Id.*, ¶ 6.)

On March 27, 2026, plaintiff filed a "second motion to compel further responses" to the RFPs, Set One, but apparently did not serve the motion. Defendant has provided evidence that it was not served with the March 27, 2026 motion (Lewis Decl., ¶¶ 13-14), and plaintiff did not file a proof of service or certificate of service, showing that the motion was served. (*Ibid.*) On August 11, 2026, plaintiff filed the present *amended* "second motion to compel further responses" to the RFPs, Set One, again without filing a proof of service. (*Id.*, ¶ 15.)

With the present motion, plaintiff again seeks to compel defendant to provide further responses to the plaintiff's RFPs, Set One, Nos. 1.1, 1.2, 1.4, 1.5, 1.6, 1.7, 1.8, 1.9, and 2.2. Defendant opposes the motion on several procedural and substantive grounds.
